

Court No. - 40

Case :- WRIT - C No. - 21052 of 2023

Petitioner :- Arun Pratap @ Munnes Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satya Narayan Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Satya Narayan Yadav, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 and 3.

2. Present writ petition is preferred with following main reliefs:-

"i) issue a writ, order or direction in the nature of mandamus directing the respondents and permit the petitioner to deposit two instalment of electric bills for the period of month May and June, 2023 without exceeding the amount, otherwise the applicant/petitioner shall suffer irreparable loss and injury.

ii) issue a writ, order or direction in the nature of mandamus directing the respondents to accept the rest two instalment of electric bills for the period of month May and June, 2023 within one time."

3. Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 and 3 on the basis of instructions submits that earlier the benefit of OTS scheme was extended to the petitioner but inspite of availing OTS scheme, the petitioner had not deposited the requisite installments on time and committed a default. In case the petitioner is still inclined to clear the outstanding dues, the grievance of the petitioner would be definitely looked into and examined as per U.P. Electricity Supply Code, 2005.

4. No useful purpose would be served in keeping the writ petition pending consideration.

5. In the facts and circumstances of the case, without expressing any opinion on the merits of the case and with the consent of the parties, we **dispose off** the writ petition with an observation that in case, the petitioner moves an appropriate application before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Jsrana, District Firozabad for redressal of his grievance under

U.P. Electricity Supply Code, 2005 within two weeks from today, the Executive Engineer would proceed to consider the same strictly in accordance with law.

6. Suffice to indicate that in case any surcharge waiver scheme is available in the department, the said benefit may also be extended to the petitioner.

Order Date :- 3.7.2023

Jaswant